SOLAR SERVICES AGREEMENT

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PROJECT DATA SHEET:

REF	ITEM	DETAILS
PARTIES CLAUSE	UL definition	Unilever Tea Kenya Limited a company incorporated in Kenya with registered number C.12/72 whose registered address is at Nakuru - Kericho Highway, P.O. Box 20-20200 Kericho (**"UL"**), including its successors in title and permitted assigns.
PARTIES CLAUSE	CrossBoundary Energy Holdings, acting on behalf of the SolarAfrica consortium	a company incorporated in ***Kenya*** with registered number CF/2016/221602 whose registered address is at ABC Place, Waiyaki Way, Westlands, Nairobi

Q. 140
+
Q. 80

THIS AGREEMENT is made on 5th February 2017

BETWEEN:

(1) **UNILEVER TEA KENYA LIMITED** a company incorporated in Kenya with registered number C.12/72 whose registered address is at Head Office- off Nakuru - Kericho Highway P.O. Box 20-20200 Kericho (**"UL"**), including its successors in title and permitted assigns. **and**;

(2) **CROSSBOUNDARY ENERGY HOLDINGS,** acting on behalf of the SolarAfrica consortium, a company registered in ***Kenya*** with registered number ***CF/2016/221602*** whose registered address is at ABC Place, Waiyaki Way, Westland's, P.O. BOX 14365 – 00800 Nairobi Kenya. (**"SolarAfrica"**),

BACKGROUND

A SolarAfrica intends to construct the Solar Plant on the Premises.

B Once constructed, SolarAfrica intends to operate the Solar Plant and sell all or a part (as detailed in Schedule 2 (*Pricing Schedule*)) of the electricity and associated benefits exported from the Solar Plant to UL.

C UL intends to utilise the electricity exported from the Solar Plant for the purpose of carrying out its business at the Premises and to secure the supply of electricity to the Premises over the Term.

D UL and SolarAfrica (each a **"Party"**, together the **"Parties"** have entered into this Agreement to document the terms on which the Parties have agreed to reflect this arrangement.

IT IS AGREED:

1. TERM

The Agreement shall come into force on the date of the Agreement and shall, subject to clause 2.1 (*Conditions Precedent to Commercial Operations Date*) continue until the expiry of the Term, unless terminated earlier pursuant to the Agreement.

2. CONDITIONS PRECEDENT TO COMMERCIAL OPERATIONS DATE

2.1 SolarAfrica shall:

2.1.1 secure any relevant approvals, consents, orders, authorisations and Governmental Approvals required by SolarAfrica for commissioning, construction, importation, installation, operation, repair and maintenance of the Solar Plant or as otherwise required to fulfil their obligations under this Agreement;

2.1.2 be satisfied that it has all land and access rights necessary to install and operate the Solar Plant, and have entered into the Property Arrangements and be satisfied that the Premises is sufficient to accommodate the System;

2.1.3 where the Premises are to be connected to the grid, have entered into a Connection Agreement and the connection referred to in the Connection Agreement is installed and energised so as to allow the export of such aggregate quantity of electricity as corresponds to the Expected Solar Output;

2.1.4 install (or procure the installation of) a Metering Device which has received all necessary approvals, consents and Governmental Approvals;

2.1.5 ensure that the Solar Plant is commissioned in accordance with clause 3.1.1 and 3.1.2 and meets the Tests on Completion required under this Agreement (see Schedule 12); and

2.1.6 satisfy all Additional SolarAfrica Conditions.

together the **"SolarAfrica Conditions"**.

2.2 On the date on which SolarAfrica becomes aware that one or more of the SolarAfrica Conditions have been satisfied, it shall notify UL and provide to UL reasonable evidence demonstrating such satisfaction.

2.3 SolarAfrica shall ensure that the SolarAfrica Conditions are met to the satisfaction of UL (acting reasonably) as soon as is reasonably practicable after the date of the Agreement and, in any event, no later than the Commercial Operations Longstop Date.

2.4 UL shall:

2.4.1 obtain any approvals, consents, orders, authorisations, permits and Governmental Approvals required to be in the name of UL (subject to SolarAfrica providing reasonable assistance to UL in this matter) for UL to perform UL's obligations under this Agreement;

2.4.2 provide appropriate access for the SolarAfrica to the Premises;

2.4.3 make appropriate technical personnel available to witness the Tests of Completion and not unduly delay the signing of the Commissioning Certificate following successful completion of the same; and

2.4.4 complete all Enabling Works as indicated in Schedule 10 in a timely manner (unless extended under Clause 3.1.10), and

together the **"UL Conditions"**.

2.5 UL shall meet all the UL Conditions as soon as reasonably practicable after the date of the Agreement and, in any event, no later than the Commercial Operations Longstop Date.

2.6 As soon as reasonably practicable following the date which UL becomes aware that one or more of the UL Conditions have been satisfied, UL shall notify SolarAfrica and provide to SolarAfrica reasonable evidence demonstrating such satisfaction.

2.7 If the Commercial Operations Date has not occurred on or before the Commercial Operations Longstop Date as a result of UL not satisfying the UL Conditions by the time set out in this Agreement (as extended under clause 3.1.10), then (provided SolarAfrica has not waived such UL Conditions) if the same results in an inability of SolarAfrica to operate the Plant or of UL to take delivery of electricity and pay for the same as required under this Agreement, then:

2.7.1 SolarAfrica may, if the System would in the absence of UL not satisfying the UL Conditions by the required time (as extended under Clause 3.1.10) be ready to generate and deliver electricity as required by this Agreement, within a thirty (30)

day period thereafter send a notice of termination on such grounds, and on delivery of such notice to UL the Agreement shall then terminate; and

2.7.2 UL shall, pay after such termination pay to SolarAfrica a sum equal to

2.7.2.1 the Early Termination Fee amount, if any, stated in schedule 4 (*Early Termination Fee*);

less any unpaid claims of UL against SolarAfrica, within thirty (30) Business Days of such termination.

2.8 If the Commercial Operations Date has not occurred on or before the Commercial Operations Longstop Date as a result of SolarAfrica not satisfying one or more of the SolarAfrica Conditions then, for each month (or part of a month) for which SolarAfrica fails to satisfy the SolarAfrica Conditions between the Commercial Operations Longstop Date and the date of termination of the Agreement pursuant to clause 14.1 (*SolarAfrica Defaults*), SolarAfrica shall be considered to have delivered zero per cent (0%) of the Required Solar Output and shall compensate UL for the resultant Shortfall each month during the Term in accordance with clause 4.3 (*System Disruptions*).

2.9 If the Commercial Operations Date has not occurred on or before the Commercial Operations Longstop Date as a result of UL not satisfying one or more of the UL Conditions then, for each month (or part of a month) for which UL fails to satisfy the UL Conditions between the Commercial Operations Longstop Date and the date of termination of the Agreement pursuant to clause 2.7.1 (above), SolarAfrica shall be considered to have delivered fifty per cent (50%) of the Required Solar Output and shall be allowed to invoice UL for the resultant amount each month (or part thereof) during the Term in accordance with clause 6.1 (*Considerations).* For avoidance of doubt, SolarAfrica will not owe UL any Shortfall payments for this period.

3. CONSTRUCTION AND COMMISSIONING

3.1 Construction, Commissioning and Testing of System

3.1.1 SolarAfrica shall carry out and complete the construction and commissioning of the Solar Plant in accordance with:

3.1.1.1 all Applicable Laws;

3.1.1.2 Good Solar Industry Practice;

3.1.1.3 the requirements in the lease, licence or other contracts entered into to facilitate access to the Premises (**"Property Arrangements"**);

3.1.1.4 Unilever Policies; and

3.1.1.5 the terms and conditions of the Agreement (including, without limitation, compliance with the technical specification set out in Schedule 3 (*Description of Premises and System*).

3.1.2 SolarAfrica shall complete the construction, testing and commissioning of the Solar Plant so as to meet the Tests on Completion for the Solar Plant by the Commercial Operations Longstop Date.

3.1.3 The Parties agree and acknowledge that SolarAfrica shall construct, design and commission the Solar Plant in accordance and in compliance with the Expected Solar Output and technical characteristics specified in schedule 3 (*Description of Premises and System*) as evidenced by successfully meeting the Tests on Completion. SolarAfrica may only construct, design or commission a Solar Plant which differs from such requirements with the written consent of UL.

3.1.4 The Parties agree and acknowledge that the location of the Solar Plant at the Premises shall be as described in schedule 3 (*Description of Premises and System*).

3.1.5 Where SolarAfrica has entered into a Connection Agreement with a Local Grid Operator, SolarAfrica shall ensure that the dedicated electrical cables for transmission of electricity from the Solar Plant up to the Delivery Point is installed and commissioned in accordance with any Connection Agreement and Applicable Law.

3.1.6 UL shall ensure that all arrangements and infrastructure for receiving electricity on UL's side of the Delivery Point are ready prior to the Commercial Operations Longstop Date at a time agreed between UL and SolarAfrica in writing, and are maintained substantially in such state in accordance with Applicable Laws through the Term.

3.1.7 The Parties agree and acknowledge that the Commercial Operations Longstop Date shall only be varied in the following circumstances:

3.1.7.1 SolarAfrica and UL mutually agree in writing upon a later Commercial Operations Longstop Date;

3.1.7.2 a Capex Relief Event has occurred; or

3.1.7.3 a Force Majeure Event has occurred,

in which case the Commercial Operations Longstop Date shall be as agreed by the Parties (in respect of an agreement under clause 3.1.7.1 (*Construction, Commissioning and Testing of System*)) or shall be extended for a period of time commensurate with the delay to the critical path programming items leading to completion of commissioning caused by such events or circumstances.

3.1.8 A party shall not be entitled to an extension to the Commercial Operations Longstop Date under the provisions of clauses 3.1.7.2 - 3.1.7.3 (*Construction, Commissioning and Testing of System*) if and to the extent:

3.1.8.1 the party has caused or contributed to any concurrent delay to the Commercial Operations Longstop Date; or

3.1.8.2 the party has not used all reasonable care and skill (including the expenditure of reasonable sums) to mitigate the impact of such event, circumstances or delay.

3.1.9 Any dispute or disagreement as to the length of time by which the Commercial Operations Longstop Date ought reasonably to be extended under clause 3.1.7 (*Construction, Commissioning and Testing of System*) shall be dealt with in accordance with clause 21.1 (*Dispute Resolution*).

manufacturer or other certified testing authority to verify the accuracy of the measurements and recordings of the Metering Device. SolarAfrica shall provide at least ten (10) Business Days prior written notice to UL of the date upon which any such test is to occur.

4.2.7 UL shall have the right, but not the obligation, to be present at and observe the testing of the Metering Device, at UL's sole cost. SolarAfrica shall prepare a written report setting forth the results of each such test, and shall provide UL with copies of such written report not later than twenty (20) Business Days after completion of such test. SolarAfrica shall bear the cost of the testing of the Metering Device and the preparation of the Metering Device test reports.

4.2.8 SolarAfrica shall maintain the Metering Device in accordance with the Metering Device manufacturer's specifications and requirements, and those of the Metering Entity.

4.2.9 The Parties agree and acknowledge that the following steps shall be taken to resolve any disputes regarding the accuracy of the Metering Device:

4.2.9.1 if either Party disputes the accuracy or condition of the Metering Device, such Party shall so advise the other Party in writing, stating in reasonable detail the basis for such dispute;

4.2.9.2 the non-disputing Party shall, within thirty (30) days of receiving such notice from the disputing Party, advise the disputing Party in writing as to its position concerning the accuracy of such Metering Device and state reasons for taking such position;

4.2.9.3 if the Parties are unable to agree to the accuracy or condition of the Metering Device, either Party may request additional testing of the Metering Device by the Metering Device's manufacturer or other testing authority authorised or certified by the Metering Entity;

4.2.9.4 if the Metering Device is found to be inaccurate by 2% or less (or any different threshold stated in the Project Data Sheet), any previous recordings of the Metering Device shall be considered valid and the Party requesting the meter testing under clause 4.2.9.3 (*Metering Device and Metering*) shall bear the cost of inspection and testing of the Metering Device as described in clause 4.2.9.3 (*Metering Device and Metering*);

4.2.9.5 if the Metering Device is found to be inaccurate by more than 2% or more (or any different threshold stated in the Project Data Sheet) or if such Metering Device is for any reason out of service or fails to register then:

(a) SolarAfrica shall promptly cause any Metering Device found to be inaccurate to be replaced, repaired or adjusted to correct such inaccuracy;

(b) the Parties shall estimate the correct amounts of Solar Output delivered during the periods affected by such inaccuracy, service outage or failure to register in accordance with clause 4.2.4 (*Metering Device and Metering*); and

(c) SolarAfrica shall bear the cost of inspection and testing of the Metering Device as carried out in accordance with clause 4.2.9.3 (*Metering Device and Metering*).

4.2.10 If as a result of any adjustment pursuant to clause 4.2.9 (*Metering Device and Metering*) the quantity of Solar Output delivered for any period is decreased (such quantity, the **"Energy Deficiency Quantity"**), SolarAfrica shall reimburse UL for the amount paid by UL in consideration for the Energy Deficiency Quantity by setting off or deducting such amount against UL's payment obligations under the Agreement. If as a result of such adjustment the quantity of Actual Monthly Production for any period is increased (such quantity, the **"Energy Surplus Quantity"**), SolarAfrica shall separately invoice for, and UL shall pay for the Energy Surplus Quantity at the Rate applicable during the applicable month in accordance with clause 6 (*Price and Payment*).

4.2.11 SolarAfrica or UL, if required by the Applicable Law or a Local Grid Operator, shall enter into and maintain in full force and effect at all times from the date required by Applicable Law or a Local Grid Operator, a Connection Agreement with the Local Grid Operator in connection with the installation and operation of the Solar Plant.

4.3 System Disruptions

4.3.1 Where, in any month, SolarAfrica delivers Actual Monthly Production lower than the Required Solar Output for that month, SolarAfrica shall compensate UL for the shortfall between the delivered Solar Output and the Required Solar Output (**"Shortfall"**) in accordance with this clause 4.3 (*System Disruptions*). In calculating Shortfall, UL shall not include the impact of any outage or derating provided for in the Schedule 6 (*Planned Outage Schedule*).

4.3.2 Where compensation is payable under this clause 4.3 (*System Disruptions*), UL shall be entitled to recover from SolarAfrica:

4.3.2.1 where UL is able to purchase electricity from an electricity utility or another third Party electricity supplier, an amount equal to the (x) amount payable by UL under any electricity supply agreement or other contract from or with an electricity supplier or intermediary to procure Shortfall electricity for the duration of the Shortfall less (y) the amount that would have been payable to SolarAfrica under this Agreement for such electricity; or

4.3.2.2 where UL is not able to purchase electricity from an electricity utility or another supplier, but is able to self-generate electricity, an amount equal to the (x) cost incurred by UL in generating Shortfall electricity for the period of the Shortfall, including any direct fuel costs and any reasonable and proportionate sums attributable to the upkeep and maintenance of any equipment required to generate electricity

for the period of the Shortfall less (y) the amount that would have been payable to SolarAfrica under this Agreement for such electricity. For avoidance of doubt, the methodology outlined in Schedule 11 shall be used to calculate Shortfall Payments,

4.3.2.3 a reasonable estimate, based on verifiable objective data, for the cost of replacing the Environmental Attributes not delivered to UL (if any) due to the Shortfall provided, however, that UL shall not be required to actually purchase such replacement Environmental Attributes

"Shortfall Payments"

4.3.3 Amounts due to UL in respect of any Shortfall shall, at the option of UL, be reimbursed by setting off or deducting such amount against UL's payment obligations under the Agreement within two months of the occurrence of such Shortfall or shall be paid in cash by SolarAfrica to UL without deduction or set-off. Where demanded in cash, such sums shall be paid in full by SolarAfrica to UL within thirty (30) days of invoice.

4.3.4 The Parties agree and acknowledge that compensation for any Shortfall under clause 4.3 (*System Disruptions*) shall be UL's sole financial remedy in respect of a failure of the Solar Plant to deliver the Required Solar Output, other than (where applicable) remedies following termination. UL's other rights under this Agreement (including without limitation termination rights) shall be unaffected.

4.3.5 The Parties agree and acknowledge that for the purposes of clause 4.3.1 (*System Disruptions*) the Required Solar Output in respect of a month shall be reduced in accordance with clause 4.3.6 (*System Disruptions*):

4.3.5.1 any inactivity of the Solar Plant caused by:

(a) UL;

(b) UL's employees, officers and agents;

(c) UL's sub-contractors (excluding SolarAfrica and any Party who is a sub-contractor of UL solely because they are a sub-contractor of SolarAfrica); and

(d) any third Party authorised by UL to be on the Premises;

4.3.5.2 a Capex Relief Event; or

4.3.5.3 any Force Majeure Event,

in each case to the extent that such inactivity was caused directly by the relevant Party or such Force Majeure Event or Capex Relief Event (as appropriate), and in any event, was not attributable to SolarAfrica or SolarAfrica 's employees, officers, agents or sub-contractors.

4.3.6 In the circumstances set out in clause 4.3.5 (*System Disruptions*), the reduction in the Required Solar Output shall be based on the amount of Solar Output which the

Solar Plant would be expected to generate during such periods of inactivity, by reference to comparable data in respect of the Solar Plant calculated in accordance with Good Solar Industry Practice.

5. DELIVERY OF SOLAR OUTPUT

5.1 SolarAfrica shall sell and UL shall purchase the Actual Monthly Production generated by the Solar Plant and made available by SolarAfrica to UL at the Delivery Point during each relevant month of the Term to the extent selected in Schedule 2 (*Pricing Schedule*). The payment in respect of Solar Output is calculated and billed on a per kWh basis as set forth in clause 6 (*Price and Payment*).

5.2 Risk and title in the Solar Output shall transfer to UL once such Solar Output crosses the Delivery Point. Nothing in this Agreement shall prevent UL from exporting the Solar Output to a Local Electricity Supplier once title to the Solar Output has passed.

6. PRICE AND PAYMENT

6.1 Consideration

UL shall pay to SolarAfrica a monthly payment (**"Solar Output Payment"**) equal to:

6.1.1 the product of the Actual Monthly Production of the Solar Plant for the relevant month multiplied by the Rate applicable for such month;

LESS

6.1.2 any Shortfall Payment due to UL in respect of the relevant month under clause 4.3 *(System Disruptions)*.

6.2 Invoice

SolarAfrica shall provide UL with an invoice in respect of each month (each an **"Invoice"**) not later than one week after the end of that month (each, an **"Invoice Date"**), commencing on the first Invoice Date to occur after the Commercial Operations Date, for the Solar Output Payment in respect of the immediately preceding month, reduced by any adjustment for Energy Deficiency Quantity under clause 4.2.10 (*Metering Device and Metering*) or to account for any Shortfall owed to UL in accordance with clause 4.3 (*System Disruptions*).

6.3 Time of Payment

UL shall pay all undisputed amounts contained in an Invoice within ninety (90) days after the date of the applicable Invoice Date.

6.4 Method of Payment

UL shall make all payments due from UL under the Agreement by electronic funds transfer in immediately available funds to the account designated by SolarAfrica in writing from time to time.

6.5 Disputes with regards to Payments and Determination of Market Reference Rate

If UL reasonably disputes any amounts contained in any Invoice, then UL may withhold such disputed sums and UL shall not be deemed in default under the Agreement by reason of such

non-payment. Neither of the Parties shall suspend the performance of their respective obligations hereunder, including payment of undisputed amounts owed under an Invoice, while such a payment dispute exists. If a payment dispute lasts longer than ninety (90) days then the parties may initiate arbitration under the dispute resolution procedures.

7. UNILEVER POLICIES

7.1 Unilever Policies and the RSP

7.1.1 SolarAfrica acknowledges that it has been provided with a copy of the Unilever Policies and agrees that all of the activities of SolarAfrica and SolarAfrica Persons shall be conducted in accordance with the Unilever Policies. UL may from time to time carry out an audit or other checks on Unilever Policies compliance either performed by itself or any third party and SolarAfrica shall respond promptly to requests from UL for information relating to its compliance with the Unilever Policies.

7.1.2 SolarAfrica acknowledges that it has read and understood (and will ensure that its employees, agents and subcontractors have read and understood) UL's Responsible Sourcing Policy ("**RSP**") and Unilever Responsible Business Partner Policy (RBPP). SolarAfrica agrees and shall ensure that its employees, agents and subcontractor of any tier agrees to:

7.1.2.1 comply at all times with the Mandatory Requirements set out in the RSP and RBPP (the "**Mandatory Requirements**");

7.1.2.2 complete at its own costs the necessary risk assessments and audits required to verify its compliance with the Mandatory Requirements; and

7.1.2.3 take at its own costs any action reasonably required by UL to rectify any non-compliance with UL the Mandatory Requirements, within the timeframe stipulated by UL.

7.1.3 Notwithstanding any other provisions herein, UL reserves the right to terminate this Agreement for breach by SolarAfrica of this clause 7.1):

7.1.3.1 on not less than seven (7) days' prior written notice (or such longer period as UL may determine based on the circumstances) where:

(a) there is material or deliberate or persistent non-compliance with clause 7.1.2.1; or

(b) SolarAfrica has failed to comply with clause 7.1.2.3 and

(c) on not less than thirty (30) days' prior written notice (or such longer period as UL may determine based on the circumstances) for SolarAfrica Default where SolarAfrica has failed to comply with clause 7.1).

7.1.4 The Parties acknowledge and agree that the Mandatory Requirements and/or the RSP or RBPP may be amended from time to time. UL will inform SolarAfrica of such amendments within a reasonable period of time and SolarAfrica will have a reasonable period of time to cure any non-compliance with the amended policies. Any changes to the policies that materially and adversely affect SolarAfrica shall be treated like a Change in Law.

7.1.5 The Parties agree to schedule an annual review meeting to ensure that all amendments to UL policies have been shared with SolarAfrica and SolarAfrica is in full compliance with UL policies

7.1.6 The RSP and RBPP, including the Mandatory Requirements can be accessed on: http://www.unilever.com/responsible-sourcing-policy/RBPP

7.2 **No payments or gifts**

7.2.1 SolarAfrica warrants that, in connection with the Agreement, it has not and will not either directly or through a third party promise, offer or give anything of value with the intention to induce that person to perform a function or activity improperly, or to reward a person for the improper performance of a function or activity or while knowing or believing that accepting anything of value would be an improper performance of a function or activity, including any inducement to do or retain from doing an act in the conduct of business which is in breach of that person's duties to his employer or principal, is dishonest, illegal or a breach of trust.

7.2.2 SolarAfrica shall promptly report to UL any request or demand for any undue financial or other advantage of any kind received by it in connection with this Agreement.

7.3 **Conflicts of Interest**

SolarAfrica shall take appropriate steps to ensure that neither it nor any of its SolarAfrica Persons are placed in a position where (in the reasonable opinion of UL) there is or may be an actual conflict, or a potential conflict, between the pecuniary or personal interests of SolarAfrica or any SolarAfrica Persons and the duties owed to UL under the provisions of this Agreement. SolarAfrica shall promptly notify and provide full particulars to UL (as appropriate) if such conflicts arise or are reasonably foreseeable to arise. Without limiting the foregoing, this includes where SolarAfrica is working on other projects for other clients.

7.4 **Publicity Releases**

SolarAfrica shall obtain written approval from UL prior to SolarAfrica and/or any SolarAfrica Persons making publicity releases or announcements regarding the Solar Plant, the Agreement or related activities or the existence or the contents of this Agreement.

7.5 Reporting, Records Maintenance, Disaster Recovery, Inspection and Audit Rights

7.5.1 SolarAfrica shall:

7.5.1.1 take all reasonable precautions, and at all times have in place suitable incident management systems and/or disaster recovery systems which comply with UL's business continuity and crisis management policies, notified to SolarAfrica from time to time, so as to ensure that any services provided by

SolarAfrica under this Agreement continue to be provided without interruption or derogation and otherwise in accordance with this Agreement;

7.5.1.2 permit UL to inspect SolarAfrica 's business continuity and crisis management arrangements and to observe their execution. SolarAfrica shall co-operate with UL in a reasonable number of UL's simulations of business continuity and crisis management scenarios without additional charge;

7.5.1.3 reliably back up all data provided, used or generated in connection with this Agreement (with respect to electronic data, in encrypted form of no less than 256 bit key strength) and shall otherwise establish and maintain adequate safeguards against the destruction or loss of such data in the possession or control of SolarAfrica ;

7.5.1.4 maintain all books, accounts, records and quality control information required by the Agreement or applicable requirements under Applicable Law and these shall be comprehensive, accurate and reliable; and

7.5.1.5 retain and properly store at all times from the date of this Agreement and following termination or expiry for at least seven (7) years all financial information and at least three (3) years for all other information relating to the provision of the Solar Plant and compliance with this Agreement (**"Records"**).

7.5.2 At all times from the date of this Agreement and for seven (7) years after termination or expiry, upon reasonable notice by UL, SolarAfrica shall permit the representatives of UL to do any or all of the following:

7.5.2.1 access during regular business hours any area of Solar Africa's premises in order to check the progress of the installation, construction, operation and maintenance of the Solar Plant and/or to ensure that SolarAfrica has complied with this Agreement;

7.5.2.2 inspect during regular business hours Solar Africa's computer systems, books and Records relating to the SolarAfrica 's performance under this Agreement to audit, determine and ensure that SolarAfrica has complied with this Agreement; and

7.5.2.3 conduct an audit of the Records on an annual basis, with the scope of such audit to be determined by UL in its absolute discretion. Should UL elect to disclose the final audit report to SolarAfrica, SolarAfrica must use all commercially reasonable efforts to remove and/or remedy any deficiencies identified by that report.

7.6 Fall Prevention

7.6.1 SolarAfrica shall ensure that all installation and maintenance work that is done at height complies with all Unilever Policies and reasonable requirements notified to SolarAfrica from time to time applicable to working at height and Applicable Laws.

7.6.2 SolarAfrica shall install a permanent fall prevention system where the System (or any part of the System) is installed at height, including but not limited to a guardrail meeting height and strength requirements that will prevent exposure to fall hazards and if such guardrail is not reasonably practicable then permanently installing a lifeline or anchorage system that can be utilised with a fall arrest harness and lanyard.

8. GENERAL UNDERTAKINGS

8.1 SolarAfrica 's Undertakings

SolarAfrica undertakes and agrees to:

8.1.1 notify UL on becoming aware of any damage to or loss of the use of the Solar Plant or that could reasonably be expected to adversely affect the availability, safety or performance of the Solar Plant;

8.1.2 immediately notify UL if it becomes aware of any event or circumstance that poses an imminent risk (including conflicts of interests) to human health, the environment, the Solar Plant or the Premises;

8.1.3 obtain and maintain and secure all Governmental Approvals required to be obtained and maintained and secured by SolarAfrica and to enable SolarAfrica to perform all its obligations under this Agreement;

8.1.4 take all necessary and reasonable safety precautions with respect of the provision of the Solar Output and complying with this Agreement that shall comply with all Applicable Laws, Unilever Policies and reasonable notifications and Good Solar Industry Practice pertaining to the health and safety of persons and real and personal property; and

8.1.5 other than a Financing Party's security interest in or ownership of the Solar Plant, not to directly or indirectly cause, create, incur, assume or suffer to exist any Lien on or with respect to the Premises, the Solar Plant or any interest therein, in each case to the extent such Lien arises from or is related to SolarAfrica 's performance or non-performance of its obligations hereunder. If SolarAfrica breaches its obligations under this clause 8.1.5, it shall:

8.1.5.1 immediately notify UL in writing;

8.1.5.2 promptly cause such Lien to be discharged and released without cost to UL; and

8.1.5.3 defend and indemnify UL against all liabilities, claims, demands, actions, damages, proceedings, costs and expenses (including reasonable legal fees and court costs at trial and on appeal) incurred in discharging and releasing such Lien.

8.2 UL's Undertakings

UL undertakes and agrees to:

8.2.1 promptly notify SolarAfrica if it becomes aware of any damage to or loss of the use of the Solar Plant or that could reasonably be expected to adversely affect the availability, safety or performance of the Solar Plant;

8.2.2 immediately notify SolarAfrica if it becomes aware of any event or circumstance that poses an imminent risk to human health, the environment, the Solar Plant or the Premises;

8.2.3 use all reasonable endeavours to obtain any authorisations required of UL under this Agreement. To the extent that only UL is authorised to request, obtain or issue any necessary approvals, permits, rebates or other financial incentives, UL shall cooperate with SolarAfrica to obtain such approvals, permits, rebates or other financial incentives;

8.2.4 not in any way cause and not in any way permit any interference with the Facilities' unobstructed access to sunlight ("Insolation"). If UL becomes aware of any activity or condition that could diminish the Insolation of the Facilities, UL shall notify SolarAfrica immediately and shall cooperate with SolarAfrica in preserving the Facilities' existing Insolation levels;

8.2.5 be responsible for using commercially reasonable efforts to maintain the physical security of the Premises and the Facilities against known risks and risks that should have been known by UL

8.2.6 if UL owns the Premises or has Landlord permission to sub-let, grant to SolarAfrica a Property Arrangement coterminous with the Term, containing subject to its terms all the access rights necessary for SolarAfrica to use and occupy portions of the Premises for the installation, operation and maintenance of the System pursuant to the terms of this Agreement, including ingress and egress rights to the Premises for SolarAfrica and SolarAfrica Persons and access to electrical panels and conduits to interconnect or disconnect the System with the Premises' electrical wiring; and

8.2.7 regardless of whether UL is owner of the Premises or leases the Premises from a landlord, undertake that:

8.2.7.1 SolarAfrica shall, subject to the terms of the Property Arrangement, have access to the Premises and Solar Plant from the date of the Agreement for the duration of the Term and for so long as needed after termination or expiry to remove (where required under this Agreement or the Property Arrangement) the Solar Plant pursuant to the applicable provisions herein; and

8.2.7.2 neither UL nor UL's landlord will interfere or handle any SolarAfrica equipment, the System or the Solar Plant without written consent from SolarAfrica (other than pursuant to clause 15 (*Consequence of Termination*),

provided, however, that UL and UL's landlord shall each at all times have access to and the right to observe the installation, maintenance, repair, removal and/or reinstatement of the Solar Plant.

8.2.8 at all times treat the System as the exclusive property of SolarAfrica and will not in any way encumber or grant a Lien in the System and will place all persons having an interest in or lien upon the Premises on notice of SolarAfrica 's ownership of the System and the legal status or classification of the Facilities as personal property of SolarAfrica.

9. REPRESENTATIONS & WARRANTIES

In addition to any other representations and warranties contained in the Agreement, each Party represents and warrants to the other as of the date of the Agreement that:

9.1 it is a corporation, duly incorporated and validly existing under the law of its jurisdiction of incorporation;

9.2 it has the power and authority to enter into, execute, deliver, and perform its obligations under the Agreement;

9.3 it has taken all requisite corporate or other action to approve and authorise the execution, delivery, and performance of the Agreement;

9.4 the obligations expressed to be assumed by each Party under the Agreement are legal, valid, binding and enforceable against such Party in accordance with its terms, except as may be limited by applicable bankruptcy, insolvency, reorganization, moratorium, and other similar laws now or hereafter in effect relating to creditors' rights generally;

9.5 there is no litigation, action, arbitration, proceeding or investigation pending or, to the best of its knowledge, threatened before any court or other Governmental Authority by, against, affecting or involving any of its business or assets that could reasonably be expected to adversely affect its ability to comply with the provisions of the Agreement; and

9.6 its execution and performance of the Agreement hereby do not constitute a breach of any term or provision of, or a default under:

9.6.1 any contract or agreement to which it or any of its Affiliates is a party or by which it or any of its Affiliates or its or their property is bound;

9.6.2 its organizational documents; or

9.6.3 any Applicable Laws.

10. TAXES AND GOVERNMENTAL FEES

10.1 UL shall reimburse and pay all Value Added Tax or equivalent charges imposed or authorized by relevant competent authorities

10.2 SolarAfrica must pay all other Taxes to the relevant competent authorities, excluding real or personal property taxes on the Premises. If SolarAfrica pays any Taxes on behalf of UL, then SolarAfrica must provide UL with documentary evidence of the payment of those Taxes.

10.3 SolarAfrica will in addition be solely liable for all Tax imposed on SolarAfrica in respect of income, profit and capital gain derived by SolarAfrica in the performance of this Agreement.

10.4 Where either party believes it is required by Applicable Law to withhold or deduct any Withholding Amount from any payment due the other party, that party is:

10.4.1 authorised to withhold or deduct the Withholding Amount; and

10.4.2 acknowledges and agrees that when payment of the Withholding Amount is made to the relevant competent authority, the party making such payment is deemed to have paid an amount equal to the Withholding Amount to the other party,

and when any amount is withheld or deducted that amount from any payment due under this Agreement, the Party deducting or withholding such amount must give the other party written notice of the Withholding Amount.

11. ENVIRONMENTAL ATTRIBUTES, ENVIRONMENTAL INCENTIVES AND REPORTING RIGHTS

11.1 Title to Environmental Incentives

Notwithstanding the Solar Plant's presence on the Premises, SolarAfrica shall own, and may assign or sell in its sole discretion, all right, title and interest associated with or resulting from the development, installation and ownership of the Solar Plant or the production, sale of the Solar Output in all Environmental Incentives provided and to the extent that any exercise of such rights by SolarAfrica shall not impair or impede in any way UL's rights under clause 11.2 (*Title to Environmental Attributes and Reporting Rights*) below.

11.2 Title to Environmental Attributes and Reporting Rights

Notwithstanding SolarAfrica 's ownership of the Solar Plant, UL shall own, and may assign or sell in its sole discretion, all right, title and interest associated with or resulting from:

11.2.1 all Environmental Attributes; and

11.2.2 the Reporting Rights related to the Environmental Attributes, in each case that currently exist or as may become available due to any Change in Law.

12. FORCE MAJEURE

12.1 Subject to clause 12.2 (*Force Majeure*) and except otherwise specifically provided in the Agreement, neither Party shall be considered in breach of the Agreement or liable for any delay or failure to comply with the Agreement (other than the failure to pay amounts due hereunder), if and to the extent that such delay or failure is attributable to the occurrence of a Force Majeure Event.

12.2 A Party claiming relief under this clause 12 (*Force Majeure*) shall as soon as it becomes aware of the existence of the Force Majeure Event:

12.2.1 as a pre-condition to relief under this Clause 12, notify the other Party in writing of the existence of the Force Majeure Event within twenty-eight (28) days after it becomes aware (or should have become aware) of the existence of the Force Majeure Event;

12.2.2 use best endeavours to minimise delay caused by such Force Majeure Event;

12.2.3 notify the other Party in writing of the cessation or termination of such Force Majeure Event; and

12.2.4 resume performance of its obligations hereunder as soon as practicable thereafter.

12.3 A Party affected by a Force Majeure Event shall not be entitled to relief under this clause 12 (*Force Majeure*) if and to the extent they have failed to comply with the provisions of clause 12.2 (*Force Majeure*).

12.4 Neither Party shall be entitled to any adjustment to the Rate or to claim any losses, damages, compensation or cost in respect of the effect of a Force Majeure Event. The occurrence of a Force Majeure Event shall not affect the obligation of UL to pay SolarAfrica in respect of any Solar Output delivered during such period where SolarAfrica is the affected Party. UL shall be under no obligation to purchase or pay for the Solar Output in accordance with clause 5.1 (*Delivery of Solar Output*) or 6.1 (*Consideration*) where UL is affected by a Force Majeure Event.

13. CAPEX RELIEF EVENT

13.1 In the event that any Change in Law:

13.1.1 increases, introduces or otherwise widens any Environmental Incentive or reduces, cancels, removes or otherwise restricts access to one or more Environmental Incentives (**"Environmental Incentive Change in Law"**);

13.1.2 renders the performance of this Agreement (in whole or in part) illegal or unenforceable by either Party (**"Enforceability Relief Event"**); or

13.1.3 either:

13.1.3.1 requires SolarAfrica to incur a material increase in capital expenditure in relation to the Solar Plant in order to comply with such Change in Law; or

13.1.3.2 imposes an obligation on SolarAfrica to undertake additional construction works, physical adjustments to the Solar Plant or otherwise undertake additional physical works in respect of the Solar Plant,

or in the event that a Unilever Material Default occurs,

(13.1.1, 13.1.2 and 13.1.3 each a **"CapEx Relief Event"**),

then either Party may serve a notice on the other Party informing the other Party of such Capex Relief Event. Such notice must be provided, as a condition to any claim, within twenty-eight (28) days following the claiming Party knew or should reasonably have known of the event.

13.2 Except as expressly provided for in clauses 13.3 or 13.4 (*Capex Relief Event*), no Capex Relief Event shall be a reason for changing the Rate. Any increase in the costs to either Party of performing this Agreement which results from a Capex Relief Event shall be borne by the affected Party, and shall not be a basis for suspending or terminating any obligations under this Agreement except in accordance with clause 13.4 (*Capex Relief Event*).

13.3 If a notice is served pursuant to clause 13.1 (*Capex Relief Event*) as a result of an Enforceability Relief Event, an event described in clause 13.1.3 or Unilever Material Default, then the Parties shall meet within ten (10) days of such notice to discuss and, acting in good faith, agree upon any amendments that may be required to the terms of this Agreement in order to mitigate the impact of the applicable event such that each Party can continue to comply with the terms of this Agreement as soon as is reasonably practicable and having the same benefits, liabilities, risks and rewards between the Parties as applied before the occurrence of the applicable event.

13.4 If a notice is served pursuant to clause 13.1.1 (*Capex Relief Event*) as a result of an Environmental Incentive Change in Law, then the Parties shall meet within ten (10) Business Days of notice by either Party to discuss and, acting in good faith, agree upon any amendments that may be required to the terms of this Agreement (including to the Rate) and to the System in order to take account of the Environmental Incentive Change in Law on the understanding that any such amendments shall reflect (in so far as possible) the same balance of benefits, liabilities, risks and rewards between the Parties in respect of the subject matter of this Agreement as applied at the date of this Agreement.

13.5 If the Parties are unable to agree any change pursuant to clause 13.3 or 13.4 (*Capex Relief Event*)), then either Party may refer the dispute to clause 21.1 (*Dispute Resolution*).

13.6 During the period from the date upon which an Enforceability Relief Event becomes effective to the date upon which agreement between the Parties is reached under clause 13.4 (*Capex Relief Event*)) or pursuant to a resolution under clause 21.1 (*Dispute Resolution*), all obligations of the Parties under this Agreement shall continue to be performed unless and to the extent that performance of such obligations would result in the breach by either Party of any Applicable Law or any provisions of the Unilever Policies.

13.7 If a notice is served pursuant to clause 13.1 (*Capex Relief Event*) as a result of a CapEx Relief Event, then SolarAfrica shall continue to perform its obligations under and subject to the Agreement.

14. DEFAULT AND TERMINATION

14.1 SolarAfrica Defaults

14.1.1 The following events are **"SolarAfrica Defaults"**:

14.1.1.1 the SolarAfrica Conditions are not satisfied by the date falling ninety (90) days after the Commercial Operations Longstop Date;

14.1.1.2 a breach of a material term of the Agreement by SolarAfrica goes unremedied for a period of forty five (45) days following written notice from UL to SolarAfrica to cure such breach;

14.1.1.3 the Commercial Operation Achievement Security ceases to be in force and effect or expires prior to the Commercial Operation Achievement Security End Date and has not been replaced in accordance with the provisions of clause 18 (*Commercial Operation Achievement Security*);

14.1.1.4 an Insolvency Event occurs with respect to SolarAfrica or the SolarAfrica Parent Company;

14.1.1.5 Solar Output is not available for twenty one (21) consecutive days due to a cause which is not a Force Majeure Event or breach of the Agreement by UL;

14.1.1.6 SolarAfrica abandons, suspends without notice or otherwise makes plain its intention not to carry out the construction or operation of all or a material part of the Solar Plant for a period exceeding thirty (30) days;

14.1.1.7 breach or termination of the Property Arrangements;

14.1.1.8 SolarAfrica fails to pay UL any undisputed amount owed under the Agreement within thirty (30) days from receipt of notice from UL requiring any such overdue amount be paid;

14.1.1.9 any representation, warranty or statement made or deemed to be made by SolarAfrica in this Agreement or any other document delivered by or on behalf of SolarAfrica under or in connection with this Agreement or the Solar Plant is or proves to have been incorrect or misleading in any material respect when made or deemed to have been made; and

14.1.1.10 the event pursuant to clause 7.1.3 *(Unilever Policies and the RSP)*.

14.1.2 If a SolarAfrica Default has occurred, clause 15.1 (*Termination for SolarAfrica Default)* shall apply.

14.2 **UL Defaults**

14.2.1 The following events are **"UL Defaults"**:

14.2.1.1 an Insolvency Event occurs in respect to UL; and

14.2.1.2 UL fails to pay SolarAfrica any undisputed amount due SolarAfrica under the Agreement within ninety (90) days from receipt of notice from SolarAfrica of such past due amount.

14.2.2 If a UL Default occurs, clause 15.2 (*Termination for UL Default)* shall apply.

14.3 Termination for Convenience

14.3.1 UL may terminate the Agreement at any time by providing SolarAfrica sixty (60) days' notice of such requirement to terminate (**"Termination for Convenience Notice"**).

14.3.2 If UL serves a Termination for Convenience Notice, then clause 15.3 (*Termination for Convenience)* shall apply.

14.4 Termination for Continued Force Majeure

14.4.1 If a Force Majeure Event shall have occurred that has affected a Party's ability to perform its obligations hereunder and that has continued for a continuous period of one hundred and eighty (180) days or has resulted in generation of less than 75%

of the Expected Solar Output during one hundred and eighty (180) days, then either Party shall be entitled to terminate the Agreement upon ninety (90) days' prior written notice to the other Party.

14.4.2 If, at the end of such ninety (90) day period such Force Majeure Event shall still continue, then the Agreement shall terminate upon notice by either Party in writing and clause 15.4 *(Termination for Continuing Force Majeure Event)* shall apply.

15. CONSEQUENCE OF TERMINATION

15.1 Termination for SolarAfrica Default

15.1.1 Following the occurrence of a SolarAfrica Default, UL may, by thirty (30) days' notice to SolarAfrica terminate this Agreement, and provided such SolarAfrica Default is still subsisting at the expiry of such thirty (30) day period, UL may issue (at its sole discretion) a notice to SolarAfrica :

15.1.1.1 requiring it to remove the System and the Solar Plant from the Premises (a **"Removal Notice"**), in which case clause 15.5 (*Consequences of Removal Notice*), in addition to clauses 15.1.2 and 15.1.3, shall apply; or

15.1.1.2 to transfer title and ownership of the Solar Plant free of Liens to UL (a **"Transfer Notice"**), in which case clause 15.7 (*Consequences of Transfer Notice*), in addition to clause 15.1.2 shall apply.

15.1.2 Termination for SolarAfrica Default and the issue of a Removal Notice or a Transfer Notice under clause 15.1.1 (*Termination for SolarAfrica Default*) shall be without prejudice to UL's existing rights and remedies under the Agreement

15.2 Termination for UL Default

15.2.1 On the occurrence of a UL Default, SolarAfrica may, by thirty (30) days' notice to UL terminate this Agreement, provided such UL Default is still subsisting at the expiry of such thirty (30) day period, and:

15.2.1.1 UL shall pay the Early Termination Fee to SolarAfrica within ninety (90) days of the later of such termination taking effect and (if issued by UL) completion of transfers under any Transfer Notice under Clause 15.2.1.2 below; and

15.2.1.2 UL may (at its sole discretion) issue a Removal Notice in which case clause 15.5 (*Consequences of Removal Notice*) shall apply or alternatively UL may at its sole discretion issue a Transfer Notice in which case clause 15.7 (*Consequences of Transfer Notice*) shall apply.

15.3 Termination for Convenience

15.3.1 Sixty (60) days following the notice issued pursuant to clause 14.3.1 (*Termination for Convenience*), the Agreement shall terminate (subject to compliance with clause 15.3.1.1) and:

15.3.1.1 UL shall pay the Early Termination Fee to SolarAfrica within ninety (90) days of such termination taking effect; and

15.3.1.2 UL may issue (at its sole discretion) a Removal Notice in which case clause 15.5 (*Consequences of Removal Notice*) shall apply or alternatively a Transfer Notice in which case clause 15.7 (*Consequences of Transfer Notice*) shall apply.

15.4 Termination for Continuing Force Majeure Event

15.4.1 Upon a termination for a continuing Force Majeure Event, in accordance with clause 14.4 (*Termination for Continued Force Majeure*):

15.4.1.1 neither Party shall have any liability to the other arising out of such termination (other than any such liabilities that have accrued prior to such termination);

15.4.1.2 within thirty (30) days of the termination coming into effect, UL may issue (at its sole discretion) a Removal Notice in which case clause 15.5 (*Consequences of Removal Notice*) shall apply or alternatively a Transfer Notice in which case clause 15.7 (*Consequences of Transfer Notice*) shall apply; and

15.4.1.3 if UL issues a Transfer Notice in accordance with clause 16.2 (*Expiry of the Agreement*), UL shall pay the Early Termination Fee to SolarAfrica within 90 days of such transfer being completed in full as required by this Agreement.

15.5 Consequences of Removal Notice

If UL issues a Removal Notice, then SolarAfrica shall:

15.5.1.1 remove all of its tangible property comprising the System and the Solar Plant from the Premises on a mutually convenient date agreed by the Parties in writing but in no case later than sixty (60) days from the date of the Removal Notice;

15.5.1.2 leave the premises in neat and clean order and restored to their original condition immediately prior to installation

15.5.1.3 if the System is located on a roof, ensure that the removal of the System does not affect the integrity of any roof

15.5.1.4 receive the Early Termination Fee from UL within ninety (90) days of such termination taking effect, provided termination was not a consequence of SolarAfrica Default

15.6 If SolarAfrica fails to remove the Solar Plant by the date agreed between the Parties in clause 15.5.1.1 or the sixty (60) day deadline thereunder, then UL may do so at the cost of SolarAfrica .

15.7 **Consequences of Transfer Notice**

If UL issues a Transfer Notice, then UL shall pay the Early Termination Fee to SolarAfrica within ninety (90) days of such termination taking effect. Title and risk in the Solar Plant, the System and Metering Device shall transfer to UL free of Liens on the later of:

15.7.1 the date of the Transfer Notice; and

15.7.2 receipt by SolarAfrica of the Early Termination Fee

15.7.3 If UL issues a Transfer Notice, then SolarAfrica agrees to enter into all documentation reasonably required by UL in furtherance of the transfer of title and risk in accordance with clause 15.7 (*Consequences of Transfer Notice*) on the written request of UL as soon as reasonably practicable.

16. EXPIRY OF THE AGREEMENT

16.1 Unless UL issues a notice (at its sole discretion) to SolarAfrica to extend the Term for up to five (5) years on the same terms and conditions (other than as to the Term) as this Agreement, this Agreement shall expire at midnight (in the country where the System is located) on the last day of the Term.

16.2 Within thirty(30) days of conclusion of the Term, UL may issue (at its sole discretion) a Removal Notice in which case clause 15.5 (*Consequences of Removal Notice*) shall apply or alternatively a Transfer Notice in which case clause 15.7 (*Consequences of Transfer Notice*) shall apply.

16.3 At its sole discretion, UL may at any time before the last day of the Term elect to purchase additional Actual Monthly Production from Solar Africa under the terms of this Agreement subject to Solar Africa's confirmation of the technical feasibility of providing such additional Actual Monthly Production. UL shall notify Solar Africa in writing of its intention and the quantity of additional Actual Monthly Production it will purchase. Solar Africa shall cooperate with UL to provide the following information, corresponding to any new Solar Plant or expansion to the existing Solar Plant, for UL consent, which shall not be unreasonably withheld or delayed: Project Data Sheet, Schedule 3 (*Description of Premises and System*), Schedule 4 (*Early Termination Fee*), Schedule 5 (*Estimated Monthly and Annual Production*) Schedule 10 (*Customer Enabling Works*), Schedule 14 (*Milestone Schedule*).

16.4 Solar Africa shall for a maximum period of the first three (3) years of the Term ,have an option, subject to the consent of UL, to provide up to 412.5 MWh of additional Actual Monthly Production to UL (equivalent to a total installed capacity of 3MWp) on substantially the same terms as set forth in this Agreement. In furtherance thereof, UL shall not engage or procure additional solar energy for this site from any other person during the term of this Agreement without prior consent of SolarAfrica. SolarAfrica may exercise such option by delivering written notice to UL, which notice shall (a) state the quantity of additional Monthly Production that Solar Africa proposes to provide to UL, (b) include a certificate from a recognized engineering firm confirming the technical feasibility of the new Solar Plant or expansion to the existing Solar Plant that will produce such additional Actual Monthly Production, and (c) include the following information with respect to the additional Monthly Production: Project Data Sheet, Schedule 3 (*Description of Premises and System*), Schedule 4 (*Early Termination Fee*), Schedule 5 (*Estimated Monthly and Annual Production*) Schedule 10 (*Customer Enabling Works*), Schedule 14 (*Milestone Schedule*). In the event that Solar Africa exercises such option, UL and Solar Africa shall proceed expeditiously in good faith to execute an amendment to this Agreement or a new agreement, on substantially the same terms as this Agreement, to document

Solar Africa's obligation to provide, and UL's obligation to purchase such additional Actual Monthly Production on substantially the same terms as this Agreement.

16.5 UL may elect to reference terms of this Agreement in subsequent Agreements with Solar Africa for purchase of other energy services including, but not limited to, energy storage.

17. SOLARAFRICA 'S PARENT COMPANY GUARANTEE

17.1 If the SolarAfrica Parent Company Guarantee is required under the Project Data Sheet and will expire on a date prior to the anticipated expiry of the Term then, at the written request of UL SolarAfrica shall deliver to UL an extended or replacement SolarAfrica Parent Company Guarantee which includes a calendar expiry date being not less than one (1) month after the anticipated expiry of the Term.

17.2 Such replacement SolarAfrica Parent Company Guarantee referred to in clause 17.1 (*SolarAfrica 's parent company guarantee*) shall be delivered to UL as soon as reasonably practicable and not later than one (1) month prior to expiry of the existing SolarAfrica Parent Company Guarantee.

18. COMMERCIAL OPERATION ACHIEVEMENT SECURITY

18.1 SolarAfrica shall, if so stated in the Project Data Sheet, procure that a legal, valid, binding and enforceable Commercial Operation Achievement Security for the benefit of UL is maintained in place until no earlier than the date on which the SolarAfrica Conditions have been satisfied in accordance with the terms and conditions of the Agreement (**"Commercial Operation Achievement Security End Date"**).

18.2 If the Commercial Operation Achievement Security will expire by reference to a date prior to the Commercial Operation Achievement Security End Date, UL shall be entitled to require either an extension of the existing Commercial Operation Achievement Security End Date or, if an extension is not possible, the provision of a replacement bank guarantee corresponding to the requirements of the Agreement and covering at least the amount still to be covered by the existing Commercial Operation Achievement Security.

18.3 SolarAfrica shall procure the issue of any such extension or new Commercial Operation Achievement Security in accordance with this clause 18 (*Commercial Operation Achievement Security*) at the latest ninety (90) days before the expiry date of the existing Commercial Operation Achievement Security.

18.4 If SolarAfrica does not comply with UL's request under clause 18.2 (*Commercial Operation Achievement Security*) expeditiously and at the latest ten (10) days prior to the expiry of the existing Commercial Operation Achievement Security, then UL shall be entitled to draw the entire amount still available under such Commercial Operation Achievement Security until such time as an extended or replaced Commercial Operation Achievement Security is provided in accordance with this clause 18 (*Commercial Operation Achievement Security*).

19. LIABILITY

19.1 Both parties shall be liable for and shall indemnify the other, their employees, officers and agents from and against all Losses:

19.1.1 whatsoever by reason of any negligence, omission, breach of contract or default by the party ; and

19.1.2 in respect of property damage, personal injury or death arising out of:

19.1.2.1 any act or omission of by the party or any of its employees, officers agents or sub-contractors; or

19.1.2.2 failures and/or defects in the Solar Plant or Metering Device.

19.2 Neither Party shall be liable for the other for any consequential or indirect losses including but not limited to loss of profit, loss of production, loss of revenue or goodwill or loss of contracts which may be suffered or incurred by the other Party.

19.3 Nothing in clause 19.2 (*Liability*) excludes or limits a Party's liability:

19.3.1 in the case of either party, in the event of fraud, deliberate default or abandonment of the Solar Plant in breach of its obligations under this Agreement; or

19.3.2 in the case of either Party, from personal injury or death resulting from negligence, gross negligence or reckless misconduct;

19.3.3 in respect of liquidated damages, the Early Termination Fee or under any provision of this Agreement when a debt or other express payment is due; or

19.3.4 or SolarAfrica 's liability:

19.3.4.1 under clauses 4.3 (*System Disruption*) or 15.1.3 (*Termination for SolarAfrica Default*);

19.3.4.2 under clause 19.1 (*Liability*);

19.3.4.3 in the event of a breach by SolarAfrica of any of clauses 7.1 (*Unilever Policies and the RSP*) or 7.2 (*No payments or gifts*); or

19.3.4.4 to the extent SolarAfrica is required by this Agreement to procure and maintain insurance in respect of that liability

provided that SolarAfrica 's maximum liability to UL under the Agreement, shall be limited to the aggregate estimated payments due to SolarAfrica under this Agreement for the two (2) years immediately following the date of the events giving rise to such liability.

19.4 The Parties' rights and remedies set out in clause 15 of the Agreement in respect of termination are their sole and exclusive remedies and compensation in respect of or arising out of termination, and all other rights or remedies for or in respect of termination provided by law, whether in tort, in negligence, from breach of statutory duty or otherwise are hereby excluded.

20. OWNERSHIP AND ASSIGNMENT

20.1 Assignment by SolarAfrica

SolarAfrica shall not sell, transfer or assign all or any part of its rights or obligations under the Agreement or any interest therein, save that SolarAfrica may:

(a) assign this Agreement to an Affiliate of SolarAfrica who has in UL's view the financial strength and technical capability to perform the obligations of SolarAfrica under this Agreement; and

(b) assign the benefit of this Agreement by way of security to a Financing Party in connection with any financing of the Solar Plant. Unilever agrees and acknowledges that the Financing Party shall be entitled to received copies of any default notices delivered by Unilever under this Agreement and will have the right, but not the obligation, to pay any sums due under this Agreement and to perform any other act, duty or obligation required on behalf and in place of SolarAfrica.,

(c) assign this Agreement to CrossBoundary Energy Holdings or its affiliates providing in UL's view they have the financial strength and technical capability to perform the obligations of SolarAfrica under this Agreement

with the prior written consent of UL, provided always that any Property Arrangements are also assigned (or assigned by way of security) to the same assignee at the same time.

20.2 Assignment by UL

20.2.1 Subject to clause 20.2.2 (*Change in Control*), UL shall not assign the Agreement or any of its rights thereunder, without SolarAfrica 's prior written consent, which consent shall not be unreasonably withheld or delayed.

20.2.2 Notwithstanding the provisions of clause 20.2.1 (*Assignment by UL*), UL may assign and / or novate the whole or part of its rights in the Agreement to a Unilever Group Company without the consent of SolarAfrica .

20.3 Change in Control

20.3.1 SolarAfrica shall not undergo a Change in Control without the prior written consent of UL, such consent not to be unreasonably withheld or delayed provided that it shall be reasonable for UL to refuse consent where the incoming controlling person(s) does not have sufficient technical or financial resources available to it or them for SolarAfrica to perform its obligations under this Agreement, or the Change in Control will causes a breach of the SolarAfrica financing or funding arrangements.

20.3.2 Any consent to a Change in Control given by UL in accordance with clause 20.3.1 (*Change in Control*) may be granted subject to reasonable conditions, including a condition requirement a replacement SolarAfrica Parent Company Guarantee from a company that will be a parent company of SolarAfrica following the proposed change of control of at least equal credit rating to the SolarAfrica Parent Company, and replacement Commercial Operation Achievement Security.

21. MISCELLANEOUS

21.1 Dispute Resolution

21.1.1 In respect of any difference or dispute under or in connection with the Agreement, to the extent permitted by Applicable Law:

21.1.1.1 a Party must not commence any action, bring any proceedings or seek any relief or remedy in a court until the Parties have

complied with the dispute resolution procedures in this clause 21.1; and

21.1.1.2 notwithstanding the existence of any dispute or difference, both Parties must continue to perform their obligations under the Agreement, except in the case of a disputed Invoice, in which case UL is not required to pay any disputed amounts.

21.1.2 In the event of any dispute between the Parties arising out of or in connection with the Agreement, including its existence, validity or termination, if the dispute has not been resolved sixty (60) days after the matter arises, either Party may refer the dispute to the London Court of International Arbitration (**"LCIA"**) in accordance with this clause 21.1.2 (*Dispute Resolution*). The Parties agree to be bound by the LCIA Rules at the time the dispute is referred to the LCIA. The number of arbitrators shall be one, the legal place of arbitration shall be London and the arbitration (including the documents submitted or relied upon by the Parties in support of their case) shall be conducted in English (in each case unless otherwise agreed in writing by the Parties).

21.2 Insurance

21.2.1 SolarAfrica shall at its own cost, procure and maintain in full force and effect (except where otherwise specified) until the date specified in Schedule 13 (Required Insurances) the Required Insurances with reputable third-party insurers.

21.2.2 SolarAfrica shall upon request, furnish current certificates evidencing that the insurance required under clause 21.2.1 (*Insurance*) is being maintained. SolarAfrica 's insurance policy provided hereunder shall contain a provision whereby the insured agrees to give the other Party thirty (30) days' written notice before the insurance is cancelled or materially altered.

21.2.3 SolarAfrica shall ensure that the Required Insurances shall be written on an occurrence basis and shall, unless stated otherwise in Schedule 13, include UL as an additional insured. All deductible and excess sums under insurances shall be borne by SolarAfrica .

21.3 Confidentiality

21.3.1 UL may disclose or make available to SolarAfrica , before and after the date of the Agreement, information about or relating to its products, specifications, business ideas, innovations processes and strategies, marketing information and other information relating to its business or products (**"Confidential Information"**). Confidential Information includes, without limitation, the terms and provisions of this Agreement.

21.3.2 SolarAfrica undertakes:

21.3.2.1 to keep all Confidential Information strictly confidential and shall not divulge such Confidential Information whether during or after the termination or expiry of this Agreement;

21.3.2.2 not to use any Confidential Information for any purpose other than in complying with its obligations under this Agreement; and

21.3.2.3 not to disclose any Confidential Information to any person other than its officers and employees, except to the extent it is necessary for the purpose of performing its obligations under this Agreement.

21.3.3 The aforementioned shall not apply to the extent it is information which is in the public domain through no fault of SolarAfrica or which SolarAfrica is required to disclose by Applicable Law. SolarAfrica shall be responsible for all breaches of these obligations of confidentiality by SolarAfrica 's employees, officers, agents, subcontractors and, so long as such persons are bound by a confidentiality agreement, current or prospective investors and lenders. All Confidential Information shall be returned to UL or destroyed at UL's direction upon the earlier of:

21.3.3.1 termination of this Agreement; or

21.3.3.2 delivery of written notice by UL requiring such return.

21.3.4 The obligations of confidentiality set out in this Agreement shall survive the expiration or earlier termination of this Agreement in whole or in part.

21.4 **Entire Agreement**

21.4.1 This Agreement represents the whole and only agreement between the Parties in relation to the subject matter of this Agreement and supersedes any previous agreement between the Parties in relation to that subject matter, including the MOU.

21.4.2 No terms and conditions endorsed upon, delivered with or contained in SolarAfrica 's quotation, acknowledgement or acceptance, specification or similar document shall form part of this Agreement and SolarAfrica waives any right which it might otherwise have to rely on such terms and conditions.

21.4.3 Where any provisions of the MOU have been incorporated into this Agreement by reference to the MOU (**"Incorporated MOU Terms"**), and such Incorporated MOU Terms are inconsistent with other provisions expressly referred to in this Agreement, the terms of the Agreement shall take precedence over the Incorporated MOU Terms.

21.5 Further assurances

Each Party shall from time to time (at its own cost) do, perform, sign, execute and deliver all such acts, deeds, documents and things (or procure the doing, performance, signing, execution or delivery of them) as shall be necessary for giving full effect to this Agreement and securing to the other Party the full benefit of the rights, powers and remedies conferred upon it in this Agreement including rights, title and interest in and to the Environmental Incentives and related Reporting Rights or Environmental Attributes (as applicable).

21.6 Cumulative Remedies

Except as set forth to the contrary herein, any right or remedy of SolarAfrica or UL shall be cumulative and without prejudice to any other right or remedy, whether contained herein or not.

21.7 Amendments and Waiver of rights

21.7.1 No amendment or variation of the terms of this Agreement shall be effective unless it is made or confirmed in a written document signed by both the Parties.

21.7.2 No delay in exercising or non-exercise by UL of any right, power or remedy provided by law or under this Agreement shall impair, or otherwise operate as a waiver or release of, that right, power or remedy. Any waiver or release must be specifically granted in writing signed by Unilever. Any single or partial exercise of any right, power or remedy provided by law or under this Agreement by UL shall not preclude any other or further exercise of it or the exercise of any other right, power or remedy.

21.8 **Survival**

The obligations rights and remedies under clauses 3.3 (Enabling Works), 4 (System Operations), 11.2 *(Title to Environmental Attributes and Reporting Rights)*, 14 *(Default and Termination)*, 15 *(Consequence of Termination)*, 16 *(Expiry of the Agreement)*, 19 (Liability), 21.1 *(Dispute Resolution)*, 21.2 *(Insurance)*, 21.3 *(Confidentiality)*, 21.9 *(Third Party Rights)*, 21.9 *(Third Party Rights)*, 21.12 *(Set-off)*, 21.13 *(Governing Law)*, 21.14 *(Severability)*], or pursuant to other provisions of this Agreement that, by their sense and context, are intended to survive termination of this Agreement, shall survive the expiration or termination of this Agreement for any reason.

21.9 **Third Party Rights**

The Parties hereby confirm that nothing in this Agreement shall confer or purport to confer on any third party any benefit or any right to enforce any provision of this Agreement, whether expressly granted or implied by any Applicable Law, or otherwise.

21.10 Notices

21.10.1 All correspondence between the Parties shall be in the English language (unless otherwise agreed between the Parties).

21.10.2 All communications relating to this Agreement shall be served by sending the same post, fax, email or by hand to the address below:

(a) UL: UNILEVER TEA KENYA LIMITED

Head Office- off Kericho- Nakuru Highway

P.O Box 20-20200 Kericho

(b) CROSSBOUNDARY ENERGY

P.O Box 14365 – 00800 Nairobi Kenya

ABC Place, Waiyaki Way,

Westlands, Nairobi.

21.10.3 Any Party may change its nominated address, email address or fax number by prior written notice to the other Party.

21.10.4 Each of those communications shall take effect:

21.10.4.1 if delivered by hand, upon delivery;

21.10.4.2 if posted, upon the earlier of (i) actual receipt, and (ii) by 10.00am on the second business day after posting;

21.10.4.3 if by fax, within two (2) hours after sending if sent on a business day between the hours of 9am and 4pm, or by 11am the following business day if sent after 4pm on a business day provided that there is confirmation of an uninterrupted transmission by a transmission report and no telephonic communications by the recipient to the senders that the fax has not been received in legible form;

21.10.4.4 if by email, the recipient has by return email or otherwise in writing expressly communicated acknowledgement of receipt of the email.

21.11 Acknowledgements

By entering into this Agreement, SolarAfrica acknowledges that:

21.11.1 except to the extent expressly provided for in this Agreement, it does not rely on any representation, warranty, condition or other conduct which may have been made by UL or any person purporting to act on behalf of UL; and

21.11.2 it has read this Agreement and has made all necessary and independent inquiries in relation to all matters relevant to the entry into, and the performance of UL's obligations under, this Agreement.

21.12 **Set-off**

In respect of any payment to either party, the other party may at any time, without notice to the other party, deduct or set-off any sum payable by that party or other liability of that party. In making such deduction or set-off, the party may convert or exchange any currency at a market rate. Such deduction or set-off shall not affect the rights or remedies available to it under the Agreement or otherwise.

21.13 **Governing Law**

21.13.1 This Agreement shall be governed by and construed in accordance with the laws of the Territory.

21.13.2 Subject to the dispute resolution process provided for in clause 21.1 (*Dispute Resolution*), each Party irrevocably submits to the exclusive jurisdiction of the courts of the Territory.

21.13.3 If there are versions or another part of the Agreement which are written in more than one language, then the English version shall prevail.

21.14 **Severability**

If all or any part of any provision of this Agreement shall be or becomes illegal, invalid or unenforceable in any respect, then the remainder of that provision and/or all other provisions of this Agreement shall remain valid and enforceable.

21.15 Relation of the Parties

Nothing in this Agreement or any document referred to in it or any matter or arrangement contemplated by it shall be construed as creating a partnership, joint venture, agency, association, fiduciary relationship or other co-operative entity between the Parties for any purpose whatsoever. No Party shall have the power or authority to bind the other Party or impose any obligations on it and no Party shall purport to do so or hold itself out as capable of doing so in relation to the other Party.

21.16 Counterparts

This Agreement may be executed in one or more counterparts, all of which taken together shall constitute one and the same instrument.

Executed as a deed, but not delivered until the first date specified on page 1, by **[UL OPCO]**:)

Signature .....

Name (block capitals) NICHOLAOS YIANNAKIS

Director

Signature .....

Name (block capitals) JOSEPH MITEI

[Secretary/]Director

Executed as a deed, but not delivered until the first date specified on page 1, by **[CrossBoundary Energy Holdings]**:)

Signature .....

Name (block capitals) MATTHEW TILLEARD

Director

Signature .....

Name (block capitals) PIETER JOUBERT

PORTFOLIO LEAD, EAST AFRICA

EXECUTION DATE: 5 FEBRUARY 2018